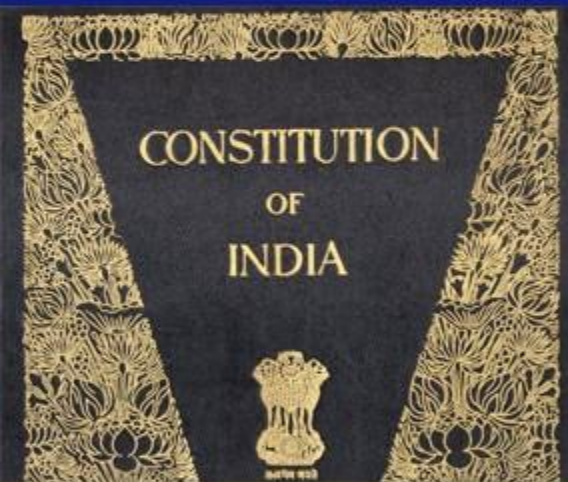


INDIAN POLITY



MODULE - 26

CITIZENSHIP
CONTEMPORARY ISSUES-II

NATIONAL REGISTER OF CITIZENS**GS PAPER 2 QUESTION****POSSIBLE MAINS QUESTION****1**

Examine how the updation of NRC will address the concerns of the people in Assam.
Also explain the negative fallouts of the exercise.

(12 Marks) (250 words)

2

Examine the history of migration in Assam and the issue of deportation of illegal Bangladeshi migrants in Assam in the context of Citizen's Registry.

(12 Marks) (250 words)

INDIAN POLITY

NATIONAL REGISTER OF CITIZENS (NRC)

WHAT IS NRC?

- 1** It is a list of all bona fide Indian citizens of Assam, the only state with such a document.
- 2** The NRC is being updated as per the provisions of The Citizenship Act, 1955 and The Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003
- 3** It will include persons whose names appear in any of the electoral rolls upto the midnight of 24th March, 1971 or National Register of Citizens, 1951 and their descendants.
- 4** So those who came between January 1, 1966 and March 25, 1971, and register themselves with the Foreigners Registration Regional Officer will be considered as citizens. The descendants of those people will also be considered as Indian citizens.
- 5** The process of verification involved house-to-house field verification, determination of authenticity of documents, family tree investigations in order to rule out bogus claims of parenthood, and linkages and separate hearings for married women.

NATIONAL REGISTER OF
CITIZENS (NRC)

BRIEF BACKGROUND

- 1 In 8th century, **Turks and Arab traders** and sailors came to the Brahmaputra Valley and settled in the Darrang region.



**Newly immigrated tea garden workers
at work in colonial Assam (1907)**

- 2 **Successive Mongoloid rulers** invited Brahmin priests to Assam and got converted to Hinduism.
- 3 Around 12th century, the Ahom rulers from Burma established their long lasting rule (till the advent of British). The **Ahom rulers also converted to Hinduism** but encouraged the co-existence of all other religions.
- 4 In the 19th century, **British brought in tribal labourers from Chotanagpur and Bihar** to work on the plantations.

NATIONAL REGISTER OF
CITIZENS (NRC)

BRIEF BACKGROUND

- 5 In 1979, agitation was started by All Assam Student Union for illegal migrant deportation which culminated in signing of Assam Accord in 1985.
- 6 The Citizenship Act of 1955 was amended after the Assam Accord for all Indian-origin people who came from Bangladesh before January 1, 1966 to be deemed as citizens.
- 7 Those who came between January 1, 1966 and March 25, 1971 were eligible for citizenship after registering and living in the State for 10 years while those entering after March 25, 1971, were to be deported. However, nothing much happened over the decades.
- 8 In 2014, the Supreme Court asked the state government to update the 1951 NRC in a time-bound manner. Present exercise is being conducted under the supervision of the Supreme Court.

NATIONAL REGISTER OF CITIZENS

BENEFITS OF THIS EXERCISE

- 1** It will provide a much-needed perspective on the extent of illegal migration that has taken place into Assam, thus restricting the wild speculations about their actual number by political parties for their advantage.
- 2** The fear that illegal immigrants will change the demography of state and influence the politics of state will also be done away with.
- 3** The publication of an updated NRC is expected to deter future migrants from Bangladesh from entering Assam illegally as publication of the draft itself had created a perception that staying in Assam without valid documentation will attract detention/jail term and deportation.
- 4** Large masses of people belonging to the districts of the Brahmaputra and Barak Valleys long seen as illegal migrants from Bangladesh and looked upon with suspicion have now been cleared of stigma and accepted as citizens at par with the state's indigenous people.
- 5** The exercise will help identify illegal immigrants and deport them back to their country of origin and saving resources of country for legitimate citizens and also reduce concern for internal security due to illegal migration.

NATIONAL REGISTER OF CITIZENS

ISSUES WITH NRC



- 1 One main contention is what will be the citizenship of the children and grandchildren of illegal immigrant.
- 2 While the citizenship law of the country provides for citizenship by birth irrespective of the parents' citizenship, the NRC rules do not recognize it.
- 3 The Citizenship (Amendment) Bill which makes Hindu illegal migrants and those from certain other minority communities in Afghanistan, Bangladesh and Pakistan eligible for Indian citizenship further creates apprehensions about alienation of minorities in process.

NATIONAL REGISTER OF CITIZENS

ISSUES WITH NRC



1

ISSUE OF D-VOTERS

1

Around 2.5 lakh out of the 40 lakh exclusions include D-voters— doubtful voters, their descendants and people whose cases are pending before the foreigners' tribunal in Assam.

2

D-voters are those who are disenfranchised by the government on the account of their alleged lack of proper citizenship credentials and their inclusion will depend on decision of the Foreigners Tribunals.

NATIONAL REGISTER OF CITIZENS

ISSUES WITH NRC

2 HUMANITARIAN CONCERNS

Ignoring the concerns of those who have lived for a long time in this land will put a dent on democratic, social values of the country.

3 PRE-1971 DOCUMENTS

Given the status of document record in the country, this is an onerous pre-condition and difficult for many people.

4 MISINFORMATION

Ascertaining the authenticity of parental linkages will remain a challenge. Many people were showing different names in different places which may lead to duplicity or mistaken exclusion from the list.

NATIONAL REGISTER OF CITIZENS

ISSUES WITH NRC

5 ISSUE OF DEPORTATION

No state can act on illegal immigration unilaterally. As of now, there is no any bilateral agreement between India and Bangladesh, which lets the fate of those finally be excluded hang in air.

6 “STATELESS PEOPLE”

So if not deported or detained in a camp, they would officially remain to be non-citizens. But what happens to these non-citizens remains a grey area as India has no fixed policy for such “stateless” persons.

7 FOCUS ON COMPLETION

The emphasis of Supreme Court, the Centre and the Assam government was on completing exercise without consideration of creating an orderly mechanism for those aggrieved by exclusion.

NATIONAL REGISTER OF CITIZENS

WAY FORWARD

- 1 They would officially be non-citizens but India has no fixed policy for “stateless” persons.
- 2 They will surely not have voting rights but certain facilities on “humanitarian grounds” may be provided to them such as right to work etc.
- 3 Grant amnesty: one option is granting Indian citizenship to the proclaimed illegal migrants after a process of naturalization but this may be protested by some sections.
- 4 There is a need to bring out comprehensive policy with regard to deportation of people. NRC and the Government needs to spell out what it intends to do with the persons whose names do not figure in the final NRC.
- 5 Forging bilateral agreement with neighboring countries that provide for taking back nationals who stay illegally in the other country after due verification can be another positive step.

WE EXPRESS OUR SINCERE THANKS FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9